

TENTATIVE RULINGS

August 10, 2026

	Case Name	Tentative
101	2024-01415728 Nutrien Ag Solutions, Inc. vs. Salt Capital, LLC	Motion for Summary Judgment/Adjudication Plaintiff Nutrien Ag Solutions, Inc.'s ("Plaintiff") unopposed Motion for Summary Judgment on its Complaint is granted. Plaintiff's alternative request for summary adjudication is moot. Plaintiff moves for summary judgment on its breach of contract claim and common counts. The Court notes that default was entered as to Defendants Salt Capital, LLC and Salt Capital Group, Inc. (the "Salt Capital Defendants") on or about 12/9/25. (ROA 125.) The only defendant not in default is Defendant Donald Doungpanya. <u>Legal Standard</u> "A party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (<i>Id.</i> at p. 851.) Simply put, "[i]f a party moving for summary judgment in any action . . . would prevail at trial without submission of any issue of material fact to a trier of fact for determination, then he should prevail on summary judgment." (<i>Id.</i> at p. 855.) Where a plaintiff seeks summary judgment, the plaintiff's burden is to produce admissible evidence on each element of a cause of action entitling him or her to judgment. (Code Civ. Proc. § 437c, subd. (p)(1); <i>S.B.C.C., Inc. v. St. Paul Fire & Marine Ins. Co.</i> (2010) 186 Cal.App.4th 383, 388.) It is not plaintiff's initial burden to disprove affirmative defenses and cross-complaints asserted by defendant. (<i>Oldcastle Precast, Inc. v. Lumbermens Mut. Cas. Co.</i> (2009) 170 Cal.App.4th 554, 565, citing <i>Aguilar</i>, supra, 25 Cal.4th at p. 853 ["summary judgment law in this state no longer requires a plaintiff moving for summary judgment to disprove any defense asserted by the defendant as well as prove each element of his own cause of action"].) If the plaintiff meets this initial burden, the burden then shifts to the defendant "to show that a triable issue of one or more material facts exists as to that cause of action." (Code Civ. Proc. § 437c, subd. (p)(1).) In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party." (<i>Aguilar</i>, supra, 25 Cal.4th at p. 843.) <u>Breach of Contract</u> "[T]he elements of a cause of action for breach of contract are [1] the existence of the contract, [2] plaintiff's performance or excuse for nonperformance, [3] defendant's breach, and [4] the resulting damages to the plaintiff." (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821, internal citation omitted.) Here, the undisputed material facts establish (ROA 137): [1] The existence of an agreement for Plaintiff to furnish the Salt Capital Defendants with goods and services, on a credit account, with Defendant Doungpanya agreeing to be the guarantor. (UF nos. 1, 2.) [2] Plaintiff performed under the agreement by providing the goods and services to the

Salt Capital Defendants. (UF no. 5.)

[3] Defendants breached the agreements by failing to pay the invoices when due and despite Plaintiff's demand. (UF no. 4.) [4] Plaintiff has been damaged in the principal sum of \$80,764.66, plus \$12,752.64 in accrued finance charges (up to and including through 6/30/24), and pre-judgment finance charges at the rate of 18% per annum from 6/30/24. (UF nos. 8, 10, 11.)

Accordingly, Plaintiff has met its initial burden of showing that it is entitled to judgment in its favor on the breach of contract claim. The burden shifts to Defendant DOUNGPANYA to show that a triable issue of material fact exists. Defendant fails to meet this burden as he has not opposed the motion.

Common Counts

The elements of a common count for open book account are: (1) that plaintiff and defendant had financial transactions; (2) that plaintiff kept an account of the debits and credits involved in the transactions; (3) that defendant owes plaintiff money on the account; and (4) the amount of money that defendant owes plaintiff. (CACI 372.)

The elements of a common count for account stated are: (1) defendant owed plaintiff money from previous financial transactions; (2) plaintiff and defendant, by words or conduct, agreed that the amount stated in the account was the correct amount owed to plaintiff; (3) defendant, by words or conduct, promised to pay the stated amount to plaintiff; (4) defendant has not paid plaintiff all of the amount owed under this account; and (5) the amount of money defendant owes plaintiff. (CACI 373.)

Lastly, a common count for goods and services rendered requires the plaintiff to show: (1) defendant owed plaintiff money from previous financial transactions; (2) plaintiff and defendant, by words or conduct, agreed that the amount stated in the account was the correct amount owed to plaintiff; (3) defendant, by words or conduct, promised to pay the stated amount to plaintiff; (4) defendant has not paid plaintiff all of the amount owed under this account; and, (5) the amount of money defendant owes plaintiff. (CACI 373.)

"When a statement is rendered to a debtor and no reply is made in a reasonable time, the law implies an agreement that the account is correct as rendered." (*Maggio, Inc. v. Neal* (1987) 196 Cal. App. 3d 745, 753.)

Here, Plaintiff has demonstrated:

- There were financial transactions between Plaintiff and the Salt Capital Defendants, which Defendant DOUNGPANYA personally guaranteed. (UF nos. 1, 2.)
- Plaintiff kept an account of the debits and credits from the financial transactions and delivered a copy of all statements to Defendants, who did not contest any of the charges. (UF no. 3.)
- The reasonable value of the goods and services sold and delivered to Defendants is \$80,764.66. (UF no. 8.)
- The reasonable value of the goods and services sold and delivered to Defendants is due and unpaid despite Plaintiff's demand. (UF no. 9.)

Accordingly, Plaintiff has met its initial burden of proving its common counts. The burden shifts to Defendant DOUNGPANYA to show a triable issue of material fact. Defendant DOUNGPANYA has not met this burden, because he failed to oppose the motion.

For the foregoing reasons, the Court grants the motion for summary judgment. Additionally, under CCP section 437c, subdivision (b)(3), the Court exercises its discretion

		to grant the motion, because Plaintiff has met its initial burden and Defendant has not filed an opposing separate statement. Plaintiff shall give notice of the ruling and submit a proposed judgment to the Court and serve it upon all parties.
102	2024-01443801 Qiu vs. You Media Inc.	Motion for Judgment on the Pleadings Plaintiff Weijia Qiu’s Motion for Judgment on the Pleadings on the Second Amended Complaint is taken off calendar as moot. The motion was directed to the unverified answer filed by Defendants on or about 4/2/26. (ROA 69.) On or about 7/6/26, Defendants filed a verified first amended answer. (ROA 80.) Accordingly, the Court finds the motion is moot. The Clerk shall give notice of the ruling.
103	2020-01126907 Security National Insurance Company vs. DCE Construction Inc.	Motion for Entry of Judgment No tentative issued.
104	2021-01208837 Rudat vs. Sauter	Motion to Set Aside/Vacate Dismissal The motion of plaintiff Daniel Rudat and cross-defendants Fred and Marta Rudat for an order setting aside the dismissal entered on 3/16/26 is denied. [ROA # 476.] Facts This was an action by Daniel Rudat to recover for personal injuries he suffered when he fell off the roof of a house he had been hired to do construction on by its owner, Gary Sauter and/or Longview Investments LLC. [First Amended Complaint (“FAC” – ROA #25), ¶¶ 9-11; Doe 1 Amendment (ROA #106).] The house was located in the state of Washington. [FAC, ¶ 8.] Plaintiff was represented by the law firm of Pratt Williams, APLC/Pratt Law Group in the filing of his complaint and throughout this action until its dismissal on 3/16/26. [<i>Id.</i> and ROA ## 53, 463.] He was also represented by Kramer Trial Lawyers through trial. [ROA ## 243, 432, 448.] Sauter responded to the FAC. [ROA ## 29, 51.] Then, he and Longview filed a cross-complaint for indemnity against Fred and Marta Rudat. [First Amended Cross-Complaint (“FAXC” – ROA #201), ¶¶ 8-16.] Fred and Marta Rudat answered the FAXC through attorney Edward Sublett, who has represented them throughout. [ROA #230.] On 4/16/24, the parties stipulated to trifurcating the trial so that the conflict of law issue (California versus Washington law) would be tried to the Court first. [ROA #271.] Further, they stipulated that if Washington Law was found to apply Plaintiff’s complaint would be dismissed without prejudice. [<i>Id.</i>, ¶ 6.] After a year of litigation and continuances, the phase I trial was held and the Court found